

1. The Motion for Spouse Wage Garnishment is GRANTED.
2. Upon issuance of writ of execution herein by the Court and the Judgment Creditor's filing of an Application for Earnings Withholding Order and related papers, the levying officer is directed to issue the subject wage garnishment as to Timothy Brainerd.
3. The Court shall issue the order after hearing.

14. 9:00 AM CASE NUMBER: MSC20-00156
CASE NAME: ADELPHOS VS BAY AREA ELEVATOR
***HEARING ON MOTION IN RE: RELEASE OF INTERPLEAD FUNDS**
FILED BY: ADELPHOS, LLC, A LIMITED LIABILITY COMPANY
TENTATIVE RULING:

Plaintiff Adelphos, LLC ("Plaintiff") filed a Motion for Release of Interpleaded Funds on September 17, 2025 (the "Motion for Release of Interpleaded Funds"). The matter was set for hearing on February 2, 2026.

Background

Plaintiff filed its Complaint on January 27, 2020 alleging various causes of action against the name defendants. A Notice of Settlement of Entire Case was filed February 21, 2025.

Plaintiff's motion is made on the grounds that Plaintiff has settled and dismissed all claims against all defendants that have appeared in this matter, no adverse claimants remain, and Plaintiff is the sole party entitled to the funds. See Declaration of Brian M. Junginger filed September 17, 2025, ¶¶2-5.

Analysis

The Motion for Release of Interpleaded Funds is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion for Release of Interpleaded Funds is GRANTED.
2. Plaintiff to submit a proposed form of order after hearing.

15. 9:00 AM CASE NUMBER: MSC21-02364
CASE NAME: HOOKER VS. MICHAEL C. STEAD INC.
***HEARING ON MOTION IN RE: STRIKE, OR IN THE ALTERNATIVE, TAX COSTS.**
FILED BY:
TENTATIVE RULING:

Defendant Kia America, Inc. ("Kia") filed a Motion to Strike, or in the Alternative, Tax Costs on July 22, 2025 (the "Motion to Tax Costs"). The Motion to Tax Costs was initially set for hearing on October 20, 2025. Plaintiff Eric Hooker ("Plaintiff") separately filed a Motion for Attorney's Fees, Costs and Expenses